

		submit their claims to arbitration in accordance with the terms of the arbitration agreement. The case management conference is VACATED. This matter is STAYED pending completion of the arbitration proceedings or until further order of the court. (Code Civ. Proc. §1281.4.) A status conference re: Status of ADR proceedings is set for January 22, 2027 at 9:00 a.m. in this department. Five days before the status conference, the parties are ordered to submit a joint statement describing the status of the arbitration. Defendants shall provide notice of this ruling.
53.	Fernandez v. FCI Lender Services, Inc. 2024-01374564	Plaintiff/Cross-Defendant Virginia Fernandez's Demurrer to the First Amended Cross-Complaint is STRICKEN as untimely. The First Amended Cross-Complaint was filed and served on 10/20/25. (ROA 417.) Cross-Defendant did not file this demurrer until 3/12/26. Therefore, it is untimely as it was not filed within 30 days of the challenged pleading. (Code Civ. Proc., § 430.40(a).) The case management conference is continued to October 12, 2026 at 9:00 a.m. in Department C28. Cross-defendant shall file an answer within 10 days. Defoort shall give notice of this ruling.
54.	Jianan International USA Holdings, Inc. v. USS Cal Builders, Inc. 2025-01506043	Cross-defendant Jianan International USA Holdings, Inc.'s demurrer to USS Cal Builders, Inc.'s Cross-complaint is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) Moving party shall file an Answer to the Cross-complaint within 10 days. <u>1st cause of action: breach of contract.</u> This cause of action states sufficient facts. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; Cross-complaint, ¶¶ 14, 17-19, Ex. 1 [existence of Subscription Agreement and terms], 16 [performance], 21, 24 [breach], 26 [proximately caused damages].) While moving party contends that the term "assist" in §§ 10.2, 10.4, and 11.2 of the Subscription Agreement is too vague to be enforceable, this cannot be determined on demurrer, particularly as the "assistance" is tied to specific criteria and benchmarks. (See <i>Tiffany Builders, LLC v. Delrahim</i> (2023) 97 Cal.App.5th 536, 544-545 [interpretation of indefinite contract terms].) Further, the alleged breaches are not limited to "assistance." (Cross-complaint, ¶ 19, [alleging